

Eric B Jones <eric@recovery-compass.org>

URGENT: NOTICE OF REVOCATION of Prior Offer & New Global Proposal (Case H054014)

2 messages

Eric B Jones <eric@recovery-compass.org> Mon, Jan 26, 2026 at 7:45 AM
To: maatteridge@nicoralaw.com
Cc: Albert Nicora <anicora@nicoralaw.com>, Jacqueline Nicora <jnicora@nicoralaw.com>

Mr. Atteridge,

PLEASE TAKE NOTICE: I mailed a settlement stipulation to your office regarding the Probate appointment. **That correspondence was drafted and sent PRIOR to my review of your "Opposition to Writ of Mandate" filed on January 22, 2026.**

Having now reviewed your Opposition, specifically your representation to the Court of Appeal that the estate assets are "make-believe"—the landscape has fundamentally changed.

Consequently, the mailed offer you will receive is **HEREBY REVOKED** effective immediately. It is null and void. I cannot offer a "discounted" settlement while your firm actively misleads the Appellate Court.

The Discrepancy: I am in possession of a letter dated June 27, 2025, authored by your partner, Albert Nicora (**attached here as Exhibit A**). This document explicitly confirms your firm's possession and control of $10,650.00 in estate assets.

This admission directly contradicts the representations made in your Opposition Brief filed Jan 22. Specifically:

- **Page 8, Line 5:** You claim I provide "no competent evidence" to support my claims.
- **Page 9, Line 7:** You argue my allegations regarding these assets "lack any factual foundations but reflect a **make-believe world**."

The Consequence: My Reply Brief is due on **February 2, 2026**. Given the material discrepancy between your filing and your firm's internal correspondence, I cannot file a standard Reply. If we proceed, I will be compelled to discharge my duty to the record by filing a concurrent **Petition for Writ of Error Coram Vobis** to place your firm's June 27 Admission Letter before the Appellate Court as evidence of extrinsic fraud.

Global Resolution Proposal: I recognize that opening a collateral proceeding regarding factual representations will burden the Court and your firm. To conserve judicial resources and avoid the necessity of motion practice regarding the integrity of the record, I am willing to settle **ALL** pending matters (Appellate and Probate) for **$35,000**, payable by **Friday, January 30, 2026 at 5:00 PM**.

Basis for Settlement Amount: This figure is not arbitrary. It represents a structured compromise of the **$32,955.00** liability detailed in my verified *Petition for Surcharge* (Case 25PR000590), calculated pursuant to **Probate Code § 859** ($10,985.00 principal + $21,970.00 statutory double damages penalty), plus approximately $2,000 in recoverable costs and filing fees incurred to date.

Acceptance of this offer will result in the immediate dismissal of the Appeal and the Writ. This would render the asset discrepancy moot and remove the necessity for me to file the June 27 Letter or seek remedial action regarding the record.

Please advise of your position by Wednesday, Jan 28.

Regards,

Eric B. Jones *Petitioner Pro Per*

Exhibit_A_Nicora_Law_June_27_Letter.pdf
38K

Eric B Jones <eric@recovery-compass.org> Wed, Jan 28, 2026 at 4:05 PM
To: maatteridge@nicoralaw.com
Cc: Albert Nicora <anicora@nicoralaw.com>, Jacqueline Nicora <jnicora@nicoralaw.com>

Counsel,

As of 4:05 PM today, I have not received your position regarding the proposal sent on January 26.

Consequently, I am proceeding with the final preparation of the Petition for Writ of Error Coram Vobis to discharge my duty to the Court regarding the integrity of the record.

The time for procedural maneuvering has ended. Your firm's failure to pay the mandatory appellate filing fee as of January 23, 2026, constitutes a constructive abandonment of this appeal. Before I make this filing—which will permanently memorialize the following irreconcilable contradictions in the public docket—I am providing you one final opportunity to resolve this matter globally.

THE EVIDENTIARY CONTRADICTION (Chronology of Extrinsic Fraud):

THE ADMISSION (June 2025): On June 27, 2025, your partner Albert Nicora admitted in writing that your firm held $10,650 in estate assets (Attached as Exhibit A).

EVIDENCE OF SCIENTER (August 2025): On August 18, 2025, Jacqueline Nicora confirmed this specific knowledge by emailing my counsel to request distribution of "$10,650.00" (Attached as Exhibit B).

THE PERJURY (November 2025): Despite this precise knowledge, your firm filed a Verified Petition on November 24, 2025, representing to the Probate Court that estate assets were "Unknown" (Attached as Exhibit C).

THE SPOLIATION NEXUS (May 2025): On the exact day your client surrendered a wiped "Decoy Phone" to me, the missing funds were deposited into a third-party account (Attached as Exhibit D).

THE ULTIMATUM:

Your default on the appeal fee signals that you cannot ethically defend the judgment in light of these facts.

I am offering to settle all pending litigation (Appeal H054014 and Probate Case 25PR000590) for $35,000.

DEADLINE: Friday, January 30, 2026, at 5:00 PM PST.

UPON ACCEPTANCE: I will dismiss the Appeal and withdraw the Writ immediately. The record will remain closed.

UPON REJECTION: I will file the Writ of Error Coram Vobis on Monday morning, entering Exhibits A through D into the permanent public record and seeking Summary Reversal based on Extrinsic Fraud and Abandonment.

Govern yourselves accordingly.

Eric B. Jones
Appellant In Pro Per
[Quoted text hidden]

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4 attachments

Exhibit_A_Nicora_Law_June_27_Letter.pdf
38K

Exhibit_B_Jacqueline_Nicora_Knowledge.pdf
201K

Exhibit_C_Nicora_Opposition_Contradiction.pdf
429K

Exhibit_D_Spoliation_Timeline.pdf
2009K